



**Bureau of Experts at the Council of Ministers**  
**Official Translation Department**

**Personal Data Protection Law**

Royal Decree No. M/19  
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**Translation of Saudi Laws**

**NOTES:**

1. This translation is provided for guidance. The governing text is the Arabic text.
2. The translation of Saudi laws takes the following into consideration:
  - Words used in the singular form include the plural and vice versa.
  - Words used in the masculine form include the feminine.
  - Words used in the present tense include the present as well as the future.
  - The word “person” or “persons” and their related pronouns (he, his, him, they, their, them, and who) refer to a natural and legal person.
3. Amendments to this Law are provided in the Appendix.



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## Personal Data Protection Law

### Article 1

In this Law, the following words and phrases shall have the meanings assigned thereto, unless the context requires otherwise:

1. **Law:** Personal Data Protection Law.
2. **Regulations:** The Implementing Regulations of this Law.
3. **Competent Authority:** The authority to be determined pursuant to a resolution by the Council of Ministers.
4. **Personal Data:** All data, regardless of its source or form, that would identify an individual or make it possible to identify him directly or indirectly, including his name, personal identification number, address, contact numbers, license numbers, records, and personal property, bank accounts, and credit card numbers, still or moving images, and any other data of a personal nature.
5. **Processing:** Any operation performed on personal data by manual or automated means, such as the collection, recording, preservation, indexing, organization, alignment, storage, modification, update, combination, retrieval, use, disclosure, transfer, publication, sharing or interconnection, blockage, erasure, or destruction of personal data.
6. **Collection:** Obtaining personal data by the controller in accordance with this Law, whether directly from its owner, or from the owner's representative or legal guardian, or another party.
7. **Destruction:** Any action by which personal data are deleted, rendering such data inaccessible or irretrievable.
8. **Disclosure:** Enabling any person, other than the controller, to obtain, use, or access personal data by any means and for any purpose.
9. **Transfer:** Transferring personal data from one place to another for processing.
10. **Publication:** Transmitting or making available any personal data through any written, audio, or visual medium.
11. **Sensitive Data:** Any personal data that indicate or include a reference to a person's racial or tribal origin; religious, intellectual or political beliefs; membership of civil associations or institutions; criminal and security data; identifying biometric data; genetic data; credit data; health data; location data; and data that indicate that one, or both, of an individual's parents are unknown.
12. **Genetic Data:** Any personal data relating to the inherited or acquired genetic characteristics of a natural person which uniquely determine his physiology or health, and which are obtained from an analysis of a biological specimen from such person, such as deoxyribonucleic acid analysis (DNA), or from an analysis of another specimen which results in obtaining genetic data.
13. **Health Data:** Any personal data relating to the physical or mental health of an individual or to the health services provided thereto.
14. **Health Services:** Services relating to the health of an individual including preventive, curative, and rehabilitative services as well as hospitalization and the provision of medicines.
15. **Credit Data:** Any personal data relating to an individual's application for financing or receipt thereof from a funding entity for personal or family purposes, including any data relating to his creditworthiness or credit history.
16. **Data Subject:** An individual to whom personal data relate, or his representative or legal guardian.
17. **Public Entity:** Any ministry; public department, institution, or authority; or any independent public agency in the Kingdom, or any affiliate thereof.
18. **Controller:** Any public entity or any private natural or legal person that determines the purpose and manner of personal data processing, whether it conducts such processing on its own or



through a processor.

19. **Processor:** Any public entity or any private natural or legal person that processes personal data for the benefit or on behalf of the controller.

## Article 2

1. This Law shall apply to any form of processing of personal data relating to individuals that is carried out in the Kingdom as well as any form of processing of personal data relating to individuals residing in the Kingdom that is carried out by an entity outside the Kingdom. This shall include the data of any deceased person if such data would identify such person or a member of his family.
2. This Law shall not apply to the processing of personal data by an individual for personal or family use, provided he does not publish or disclose such data to a third party. The Regulations shall specify the meaning of personal and family use set forth in this paragraph.

## Article 3

The provisions and procedures stipulated in this Law shall not prejudice any provision stipulated in another law or international agreement to which the Kingdom is a party which grants a right to a data subject or provides for better protection of such data.

## Article 4

The data subject shall, pursuant to this Law, have the following rights:

1. Right to be informed: It includes informing the data subject of the legal or acceptable practical justification for collecting his personal data and the purpose therefor, and ensuring that such data are not further processed in a manner incompatible with the purpose for which they are collected or in cases other than those stipulated in Article 10 of this Law.
2. Right of access: The right of the data subject to access his personal data that are held by the controller and to receive a copy thereof at no cost in a format that is clear and conforms with the content of the records, as specified by the Regulations, without prejudice to the provisions of the Credit Information Law regarding fees and the provisions of Article 9 of this Law.
3. Right to rectification: The right of the data subject to request rectification, completion, or update of his personal data that are held by the controller.
4. Right to erasure: The right of the data subject to request the erasure of his personal data that are held by the controller in cases where they are no longer necessary, without prejudice to the provisions of Article 18 of this Law.
5. Any other rights provided for in this Law as specified by the Regulations.

## Article 5

1. Except for the cases provided for in this Law, personal data may not be processed or processed for a purpose other than that for which such data are obtained without the consent of the data subject. The Regulations shall specify the conditions for consent, the cases where the consent must be in writing, and the terms and conditions for obtaining consent from the legal guardian if the data subject is partially or fully incompetent.
2. In all cases, a data subject may, at any time, withdraw the consent referred to in paragraph (1) of this Article. The Regulations shall specify the necessary controls.



## Article 6

The processing of personal data shall not require the consent referred to in Article 5(1) of this Law in the following cases:

1. If processing entails a real benefit for the data subject, and contacting the data subject is difficult or impossible.
2. If processing is conducted pursuant to another law or to a prior agreement to which the data subject is a party.
3. If the controller is a public entity and the processing is required for security purposes or to satisfy judicial requirements.

## Article 7

The consent referred to in Article 5(1) of this Law shall not be a condition for providing a service or a benefit, unless such service or benefit is related to the personal data processing for which the consent was made.

## Article 8

Subject to the provisions relating to the disclosure of personal data provided for in this Law and the Regulations, the controller shall select a processor that provides the necessary guarantees for implementing the provisions of this Law and the Regulations, and shall continuously verify the processor's compliance with its instructions in all matters relating to personal data protection in a manner not inconsistent with the provisions of this Law and the Regulations. This shall not prejudice the controller's responsibilities towards the data subject or the Competent Authority, as the case may be. The Regulations shall specify the necessary provisions therefor, provided they include the provisions relating to any subsequent contracts concluded by the processor.

## Article 9

1. The controller may specify the periods for exercising the right of access stipulated in Article 4(2) of this Law, and the Competent Authority shall specify the appropriate duration therefor. The controller may limit such right in the following cases:
  - a) If such limitation is necessary to protect the data subject or others from any harm, subject to the Regulations.
  - b) If the controller is a public entity and such limitation is required for security purposes, to enforce another law, or to satisfy judicial requirements.
2. The controller shall not allow the data subject to access his data in any of the cases stipulated in Article 16(1,2,3,4,5, and 6) of this Law.

## Article 10

The controller may collect personal data only from the data subject directly and may process such data only for the purposes for which they are collected. The controller, however, may collect personal data directly from other than the data subject, or process such data for purposes other than those for which they are collected, in the following cases:

1. If the data subject consents to the same in accordance with this Law.
2. If the personal data are publicly accessible or are collected from a publicly accessible source.
3. If the controller is a public entity and the personal data are collected directly from other than the data subject or processed for purposes other than those for which they are collected, and the collection or processing is intended to serve security purposes, to enforce another law, or to satisfy



judicial requirements, subject to the Regulations.

4. If compliance with such prohibition may harm the data subject or adversely affect his vital interests, subject to the Regulations.
5. If the collection or processing of personal data is necessary to protect public health, public safety, or the life or health of certain individuals. The Regulations shall specify the relevant controls and procedures.
6. If the personal data will not be recorded or stored in a format that makes it possible to identify its owner directly or indirectly. The Regulations shall specify the necessary controls and procedures.

#### **Article 11**

1. The purpose of the collection of personal data shall be directly related to the original purpose of the controller and shall not be inconsistent with any statutory provision.
2. The methods and means of collection of personal data shall not be inconsistent with any statutory provision. Such methods and means shall be appropriate to the circumstances of the data subject; direct, transparent, and secure; free from deception and blackmail; and not misleading.
3. The content of personal data shall be appropriate and confined to the minimum limit required for the purposes of collection, and shall not include what may lead to the identification of the data subject once the purpose for collection is completed. The Regulations shall specify the relevant procedures.
4. If it is established that the personal data being collected are no longer necessary for the intended purpose, the controller shall cease collecting such data and immediately destroy the collected data.

#### **Article 12**

The controller shall set a privacy policy for personal data and make it available to data subjects prior to the collection of their data. Said policy shall determine the purpose and method of collection, the personal data to be collected, and the method of storing, processing, and destruction of such data as well as the rights of the data subject regarding such data and the manner in which such rights are exercised.

#### **Article 13**

The controller shall, prior to collecting personal data directly from the data subject, use adequate means to inform him of the following:

1. The legal or acceptable practical justification for collecting his personal data.
2. The purpose of collecting his personal data and whether it is mandatory or optional to collect such data in whole or in part; the data subject shall be informed that his data will not be subsequently processed in a manner incompatible with the purpose of collection or in other than the cases stipulated in Article 10 of this Law.
3. The identity of the person collecting the personal data and, when necessary, the address of his employer, unless the data is collected for security purposes.
4. The name and capacity of the entity to which the personal data are to be disclosed and whether such data are to be transferred, disclosed, or processed outside the Kingdom.
5. The potential consequences and risks of failing to complete the collection of personal data.
6. The rights of the data subject as stipulated in Article 4 of this Law.
7. Other aspects specified by the Regulations as per the nature of the activity engaged in by the controller.



## Article 14

The controller may not process personal data without taking the measures necessary to verify that such data are accurate, complete, up to date, and related to the purposes for which they are collected, in accordance with this Law.

## Article 15

The controller may not disclose personal data, except in the following cases:

1. If the data subject consents to the same in accordance with this Law.
2. If the personal data are collected from a publicly accessible source.
3. If disclosure is requested by a public entity for security purposes, to enforce another law, or to satisfy judicial requirements, as provided for by the Regulations.
4. If disclosure is necessary to protect public health, public safety, or the life or health of certain individuals. The Regulations shall specify the relevant controls and procedures.
5. If disclosure is only for subsequent processing that would not identify the data subject or any other individual. The Regulations shall specify the relevant controls and procedures.

## Article 16

The controller may not disclose personal data in the cases stipulated in Article 15(1, 2, and 5) of this Law if such disclosure:

1. poses a security risk, harms the Kingdom's reputation, or conflicts with the Kingdom's interests;
2. affects the Kingdom's relationship with another country;
3. prevents the discovery of a crime, affects the rights of the accused to receive a fair trial, or affects the integrity of ongoing criminal proceedings;
4. compromises the safety of an individual or individuals;
5. entails a violation of the privacy of an individual other than the data subject, as determined by the Regulations;
6. conflicts with the interest of a fully or partially incompetent person;
7. breaches legally established professional obligations;
8. involves a breach of a judicial obligation, procedure, or ruling; or
9. discloses a confidential source of information that the public interest requires non-disclosure thereof.

## Article 17

1. If an error is corrected, missing information is completed, or an update is made to the personal data, the controller shall notify any entity to which such data were transferred of any change and shall make it accessible thereto.
2. The Regulations shall specify the time limits for correcting and updating data, the types of correction, and the procedures required to avoid the consequences of processing incorrect, inaccurate, or outdated personal data.

## Article 18

1. The controller shall destroy the personal data as soon as the purpose for their collection ends. However, the controller may retain such data, provided that parts of the data that may lead to the identification of the data subject are removed in accordance with the controls specified by the Regulations.
2. The controller shall, in the following cases, retain the personal data even after the purpose for their collection is completed:





- a) If there is a legal justification that mandates the retention of such data for a specific period; in such case, the data shall be destroyed after the lapse of said period or the completion of the purpose for their collection, whichever is longer.
- b) If the personal data are closely related to a case pending before a judicial authority and are required to be retained for such purpose; in such case, the data shall be destroyed upon completion of the judicial proceedings of the case.

#### **Article 19**

The controller shall take the necessary regulatory, administrative, and technical measures to protect personal data, including when transferring such data, in accordance with the provisions and controls specified by the Regulations.

#### **Article 20**

1. The controller shall promptly notify the Competent Authority upon becoming aware of any leakage, damage, or unauthorized access to personal data.
2. The Regulations shall specify the cases where the controller must notify the data subject if any leakage, damage, or unauthorized access to his personal data occurs. The controller shall promptly notify the data subject if any of the foregoing would cause serious harm to the data or the data subject.

#### **Article 21**

The controller shall respond to the requests of the data subject relating to his rights, which are stipulated in this Law, within a period specified by the Regulations and through the means determined thereby.

#### **Article 22**

The controller shall, according to the nature of the activity it engages in, assess the effects of processing personal data for any product or service provided to the public. The Regulations shall specify the relevant provisions.

#### **Article 23**

The Regulations shall, in a manner not inconsistent with this Law, determine the additional controls and procedures regarding the processing of health data to ensure the protection of the privacy of data subjects and their rights as stipulated in this Law, provided that they include the following:

1. Restricting the right of access to health data, including medical files, to the minimum number of staff and to the extent required to provide the necessary health services.
2. Limiting health data processing procedures and operations for the provision of health services or health insurance to the minimum number of staff.





## Article 24

The Regulations shall, in a manner not inconsistent with this Law, determine the additional controls and procedures regarding the processing of credit data to ensure the protection of the privacy of the data subjects and their rights as stipulated in this Law and the Credit Information Law, provided that they include the following:

1. Taking the measures necessary to verify that the written consent of the data subject is obtained for collecting his data, for changing the purpose of collection, or for disclosing or publishing such data in accordance with this Law and the Credit Information Law.
2. Notifying the data subject of any request from any entity to disclose his credit data.

## Article 25

With the exception of awareness-raising materials sent by public entities, the controller may not use the contact information of the subject data, including postal addresses or emails, to send promotional or awareness-raising materials, unless the following conditions are met:

1. Obtaining the consent of the target recipient to receive said materials.
2. Providing the target recipient with a clear mechanism, to be determined by the Regulations, to stop receiving said materials.

The Regulations shall determine the provisions related to the promotional and awareness-raising materials referred to in this Article as well as the terms and conditions for the consent of the target recipient to receive said materials.

## Article 26

With the exception of sensitive data, personal data may be processed for marketing purposes if they are collected directly from the owner with his consent in accordance with the provisions of this Law. The Regulations shall determine the necessary controls.

## Article 27

Personal data may be collected or processed for scientific, research, or statistical purposes without obtaining the consent of the owner, in the following cases:

1. If personal data do not identify the owner.
2. If the part of the data which identifies the subject data will be destroyed during processing and prior to disclosing such data to any other entity, provided that the data are not of a sensitive nature.
3. If the collection or processing of personal data for said purposes is required under another law or for the execution of a prior agreement to which the data subject is a party.

The Regulations shall determine the necessary controls pertaining to this Article.

## Article 28

Official documents which identify the data subject shall not be photocopied or copied, except for the implementation of the provisions of a law, or upon the request of a competent public entity as determined by the Regulations.



## Article 29

Except in cases of extreme necessity requiring the protection of the life or vital interests of the data subject outside the Kingdom, or requiring the prevention, examination, or treatment of an infectious disease, the controller may not transfer personal data outside the Kingdom or disclose such data to an entity outside the Kingdom, except for the fulfillment of an obligation under an agreement to which the Kingdom is a party, to serve the interests of the Kingdom, or for other purposes as determined by the Regulations, provided that the following conditions are met:

1. The data transfer or disclosure does not compromise the national security or the vital interests of the Kingdom.
2. Sufficient guarantees are provided to protect the personal data to be transferred or disclosed and its confidentiality, provided that the standards of personal data protection are not lower than the standards provided in this Law and the Regulations.
3. Transfer or disclosure of personal data is limited to what is necessary.
4. The Competent Authority approves the transfer or disclosure of data in accordance with the Regulations.

With the exception of the condition provided for in paragraph (1) of this Article, the Competent Authority may, on a case-by-case basis, exempt the controller from any of the aforementioned conditions if the Competent Authority decides, independently or with other entities, that the personal data will be afforded an acceptable level of protection outside the Kingdom, provided that such data are not classified as sensitive data.

## Article 30

1. Without prejudice to the provisions of this Law and the powers of the Saudi Central Bank under relevant laws, the Competent Authority shall oversee the application of the provisions of this Law and the Regulations.
2. The controller shall appoint or designate one person, or more, from among its employees to ensure its compliance with this Law and the Regulations. The Regulations shall determine the relevant provisions.
3. The controller shall cooperate with the Competent Authority to carry out its tasks which are related to overseeing the application of this Law and the Regulations. It shall also take the necessary measures with regard to matters pertaining to such implementation referred thereto by the Competent Authority. The Competent Authority may request the necessary documents or information from the controller to verify its compliance with the provisions of this Law and the Regulations.
4. The Competent Authority may assign to other entities some of its duties relating to the oversight of the application of this Law and the Regulations.



### **Article 31**

Without prejudice to Article 18 of this Law, the controller shall, according to the nature of the activity carried out thereby, keep records of the activities of personal data processing for a period determined by the Regulations to be available when requested by the Competent Authority, provided that such records include, at a minimum, the following data:

1. The controller's contact details.
2. The purpose of personal data processing.
3. A description of the categories of data subjects.
4. Any entity to which personal data are, or will be, disclosed.
5. Whether personal data are, or will be, transferred abroad or disclosed to an entity outside the Kingdom.
6. The expected period for retention of personal data.

### **Article 32**

1. The Competent Authority shall establish an electronic portal for the purpose of creating a national register for controllers. Said portal shall aim to monitor the controllers' compliance with this Law and the Regulations and to provide services related to personal data protection procedures to the controllers, in accordance with the Regulations.
2. Controllers shall register with the portal referred to in paragraph (1) of this Article. The Competent Authority shall collect a fixed annual fee not exceeding one hundred thousand riyals for registering controllers of private legal personality on the portal referred to in paragraph (1) of this Article. The Regulations shall determine a fixed annual fee not exceeding the prescribed maximum amount, according to the nature of the activity in which such controllers engage.
3. A special register shall be allocated for each controller in the portal wherein the records referred to in Article 31 of this Law and other necessary documents or information related to personal data processing are entered.

### **Article 33**

1. The Competent Authority shall be in charge of approving the practice of commercial, professional, or non-profit activities related to personal data protection in the Kingdom, as provided by the Regulations.
2. Any entity located outside the Kingdom shall, upon processing by any means the personal data of individuals residing in the Kingdom, appoint a representative in the Kingdom licensed by the Competent Authority to fulfill the obligations under this Law and the Regulations. The appointment of said representative shall not prejudice the responsibilities of said entity towards the data subject or the Competent Authority, as the case may be. The Regulations shall specify the licensing provisions and the scope of the representative's relationship with the entity outside the Kingdom that he represents.
3. The Competent Authority may license entities to issue accreditation certificates to controllers and processors, provided that the Competent Authority sets the rules governing the issuance of such certificates.

### **Article 34**

The data subject may file with the Competent Authority any complaint relating to the application of this Law and the Regulations. The Regulations shall determine the controls for handling said complaints by the Competent Authority.



## Article 35

1. Without prejudice to any harsher penalty provided for in any other law, a person who commits any of the following violations shall be subject to the corresponding penalties:
  - a) Disclosure or publication of sensitive data in violation of this Law: Imprisonment for a period not exceeding two years and a fine not exceeding three million riyals, or either penalty if the intent is to harm the data subject or achieve personal interest.
  - b) Violation of Article 29 of this Law: Imprisonment for a period not exceeding one year and a fine not exceeding one million riyals, or either penalty.
2. The Public Prosecution shall have jurisdiction to investigate and prosecute before the competent court the violations stipulated in this Article.
3. The competent court shall hear cases relating to the application of this Article and shall impose the prescribed penalties.
4. The competent court may double the fine if the violation is repeated, even if the imposed fine exceeds the maximum limit, provided that such fine does not exceed double such limit.

## Article 36

1. Absent a specific provision in Article 35 of this Law, and without prejudice to any harsher penalty provided for in any other law, any natural person or private legal person subject to this Law who violates any of the provisions of this Law or the Regulations shall be punished with a warning or a fine not exceeding five million riyals. The fine may be doubled if the violation is repeated, even if the imposed fine exceeds the maximum limit, provided that such fine does not exceed double such limit.
2. A committee, or more, shall be formed pursuant to a decision by the head of the Competent Authority. Such committee shall comprise at least three members, including a Sharia or legal advisor; one of whom shall be named chairman. Said committee shall review the violations and impose the penalty of warning or the fine stipulated in paragraph (1) of this Article according to the type, gravity, and impact of the violation. Committee decisions shall be approved by the head of the Competent Authority or his designee. The head of the Competent Authority shall, pursuant to a decision issued thereby, issue the committee's work rules and determine the remuneration of its members.
3. Any person against whom a decision is issued by the committee referred to in paragraph (2) of this Article may appeal said decision before the competent court.

## Article 37

1. Employees, appointed pursuant to a decision by the head of the Competent Authority, shall detect and record the violations stipulated in this Law or the Regulations.
2. The Competent Authority may seize the means or tools used in committing the violation until a decision is issued thereon.



### **Article 38**

1. Without prejudice to the rights of bona fide third parties, the competent court may order confiscation of the proceeds of the violations stipulated in this Law.
2. The competent court or the committee stipulated in Article 36(2) of this Law, as the case may be, may include in the judgment or decision imposing a penalty for the publication of a summary thereof at the expense of the violator in a local newspaper, or more, published in his area of residence or in any other appropriate medium according to the type, gravity, and impact of the violation. The summary shall be published after the judgment becomes final, the decision becomes unappealable due to the lapse of the statutory period for appeal, or upon the issuance of a final ruling to dismiss the appeal.

### **Article 39**

Without prejudice to the provisions of Articles 35 and 36(1) of this Law, the public entity shall take disciplinary action against any of its employees who violate any of the provisions of this Law and the Regulations, according to legally established accountability and disciplinary provisions and procedures.

### **Article 40**

Without prejudice to the imposition of penalties stipulated in this Law, any person who sustains damage resulting from committing any of the violations stipulated in this Law or the Regulations may seek compensation before the competent court for material or moral damage in proportion to the extent of the damage.

### **Article 41**

Any person who engages in personal data processing shall maintain the confidentiality of information relating to such data, even after the termination of his employment or contractual relationship.

### **Article 42**

The head of the Competent Authority shall issue the Regulations within a period not exceeding one hundred and eighty days from the date of issuance of this Law. He shall, prior to issuance of said Regulations, coordinate with the Ministry of Communications and Information Technology, the Ministry of Foreign Affairs, the Communications and Information Technology Commission, the National Cybersecurity Authority, the Saudi Health Council, and the Saudi Central Bank, each within their respective jurisdiction.

### **Article 43**

This Law shall enter into force one hundred and eighty days following the date of its publication in the Official Gazette.



## Appendix

### Amendments

#### March 27, 2023 (Ramadan 5, 1444H)

- Amendments pursuant to Royal Decree No. M/148, dated 5/9/1444H
- Amending the definitions of "Destruction", "Disclosure", "Sensitive Data", and "Data Subject", provided in Article 1 to read as follows:
  - “7. Destruction: Any procedure performed on personal data that renders such data inaccessible or irretrievable, or makes it impossible to identify the data subject.”
  - “8. Disclosure: Enabling any person, other than the controller or the processor, as the case may be, to obtain, use, or access personal data by any means and for any purpose.”
  - “11. Sensitive Data: Any personal data that is related to a person's racial or ethnic origin; religious, intellectual, or political beliefs; security and criminal data; identifying biometric data; genetic data; health data; and data that indicate that one, or both, of an individual's parents are unknown.”
  - “16. Data Subject: An individual to whom personal data relate.”
- Amending Article 4 to read as follows:
  - “The data subject shall, pursuant to this Law and the Regulations, have the following rights:
    1. Right to be informed: It includes informing the data subject of the legal justification and purpose of collecting his personal data.
    2. Right of access: The right of the data subject to access his personal data that are held by the controller, pursuant to the controls and procedures determined by the Regulations and without prejudice to Article 9 of this Law.
    3. Right to request personal data: The right of the data subject to request a clear and legible copy of his personal data that are maintained by the controller pursuant to the controls and procedures determined by the Regulations.
    4. Right to rectification: The right of the data subject to request rectification, completion, or update of his personal data that are held by the controller.
    5. Right to erasure: The right of the data subject to request the erasure of his personal data that are held by the controller in cases where they are no longer necessary, without prejudice to the provisions of Article 18 of this Law”
- Replacing the phrase "in writing" stated in Article 5(1) with the phrase “expressly made”.
- Adding paragraph (4) to Article 6, to read as follows:
  - “4. If the processing is required to achieve a legitimate interest for the controller, provided that such processing does not violate the data subject's rights or conflict with his interests, and that the data are not sensitive. The Regulations shall determine the necessary controls and procedures.”





- Amending Article 8 to read as follows:

“Subject to the provisions relating to the disclosure of personal data provided for in this Law and the Regulations, the controller shall select a processor that provides the necessary guarantees for implementing the provisions of this Law and the Regulations, and shall verify the processor’s compliance with the provisions of this Law and the Regulations. This shall not prejudice the controller’s responsibilities towards the data subject or the Competent Authority, as the case may be. The Regulations shall specify the necessary provisions therefor, provided that they include the provisions relating to any subsequent contracts concluded by the processor.”
- Amending Article 9(1) to read as follows:

“1. The controller may specify the periods for exercising the right of access stipulated in Article 4(2) of this Law, in accordance with the Regulations. The controller may limit such right in the following cases:

  - a) If such limitation is necessary to protect the data subject or others from any harm, subject to the Regulations.
  - b) If the controller is a public entity and such limitation is required for security purposes, to enforce another law, or to satisfy judicial requirements.”
- Amending Article 10 to read as follows:

“The controller may collect personal data only from the data subject directly, and may process such data only for the purposes for which they are collected. The controller, however, may collect personal data directly from other than the data subject, or process such data for purposes other than those for which they are collected, in the following cases:

  1. If the data subject consents to the same in accordance with this Law.
  2. If the personal data are publicly accessible or are collected from a publicly accessible source.
  3. If the controller is a public entity, and the personal data are collected or processed to serve public interest, for security purposes, to enforce another law, or to satisfy judicial requirements.
  4. If compliance with such prohibition may harm the data subject or adversely affect his vital interests.
  5. If the collection or processing of personal data is necessary to protect public health, public safety, or the life or health of certain individuals.
  6. If the personal data will not be recorded or stored in a format that makes it possible to identify its owner directly or indirectly.
  7. If the collection or processing of personal data is necessary to achieve legitimate interests for the controller, unless it violates the data subject’s rights or conflicts with his interests, and provided that it is not sensitive data.

The Regulations shall determine the provisions, controls, and procedures related to paragraphs (2) to (7) of this Article.”
- Amending Article 11(4) to read as follows:

“4. If it is established that the personal data being collected are no longer necessary for the intended purpose, the controller shall cease collecting such data and destroy the collected data without delay.”





- Amending Article 12 to read as follows:  
“The controller shall set a privacy policy and make it accessible to data subjects upon collecting their data. Said policy shall determine the purpose and method of data collection, the data to be collected, and the method of storing, processing, and destruction of such data as well as the rights of the data subject regarding such data and the manner of exercising such rights.”
- Amending the preamble to Article 13 to read as follows:  
“The controller shall, when collecting personal data directly from the data subject, use adequate means to inform him of the following:”
- Amending Article 13(1) to read as follows:  
“1. The legal justification for collection.”
- Amending Article 15 to read as follows:  
“The controller may not disclose personal data, except in the following cases:
  1. If the data subject consents to the same in accordance with the provisions of this Law.
  2. If the personal data are collected from a publicly available source.
  3. If disclosure is requested by a public entity for public interest purposes, security purposes, to enforce another law, or to satisfy judicial requirements.
  4. If disclosure is necessary to protect public health, public safety, or the life or health of certain individuals.
  5. If disclosure is only for subsequent processing that would not identify the data subject or any other individual.
  6. If disclosure is necessary to achieve legitimate interests for the controller, provided that such disclosure does not violate the data subject’s rights or conflict with his interests, and that the data are not sensitive.The Regulations shall determine the provisions, controls, and procedures related to paragraphs (2) to (6) of this Article.”
- Amending the preamble of Article 16 to read as follows:  
“The controller may not disclose personal data in the cases stipulated in Article 15(1, 2, 5, and 6) of this Law if such disclosure:”
- Amending Article 18(1) to read as follows:  
“1. The controller shall, without delay, destroy the personal data after the purpose for their collection ends. However, the controller may retain such data, provided that parts of the data that may lead to the identification of the data subject are removed in accordance with the controls specified by the Regulations.”
- Amending Article 20 to read as follows:
  1. “The controller shall notify the Competent Authority upon becoming aware of any leakage, damage, or unauthorized access to personal data, in accordance with the Regulations.
  2. The controller shall notify the data subject if the leakage, damage, or unauthorized access to his data causes harm to the data or conflicts with his rights or interests, in accordance with the Regulations.”
- Replacing the word "written" in Article 24(1) with the word “express”.



- Amending Article 29 to read as follows:
  - “1. Subject to the provisions of paragraph (2) of this Article, the controller may transfer personal data outside the Kingdom or disclose such data to an entity outside the Kingdom in order to achieve any of the following purposes:
    - a) Fulfilling an obligation under an agreement to which the Kingdom is a party.
    - b) Serving the interests of the Kingdom.
    - c) Fulfilling an obligation to which the data subject is a party.
    - d) Fulfilling any other purpose, in accordance with the Regulations.
  - 2. The conditions for transferring or disclosing personal data, as per paragraph (1) of this Article, shall be as follows:
    - a) The data transfer or disclosure does not compromise the national security or the vital interests of the Kingdom.
    - b) The personal data are afforded an appropriate level of protection outside the Kingdom provided that such level is not lower than that stipulated in this Law and the Regulations. The level of protection shall be based on an assessment by the Competent Authority in coordination with relevant entities.
    - c) Transfer or disclosure of personal data is limited to what is necessary.
  - 3. The provisions of paragraph (2) of this Article shall not apply to cases of extreme necessity requiring the protection of the life or vital interests of the data subject or the prevention, examination, or treatment of an infectious disease.
  - 4. The Regulations shall determine the provisions, standards, and procedures relating to the application of this Article, including the cases in which the controller is exempted from any of the conditions referred to in paragraph (2)(b and c) of this Article as well as the controls and procedures of such exemption and cancelation thereof.”
- Amending Article 30 to read as follows:
  - “1. Without prejudice to the provisions of this Law and the powers of the Saudi Central Bank under relevant laws, the Competent Authority shall oversee the application of the provisions of this Law and the Regulations.
  - 2. The Regulations shall determine the cases wherein the controller must appoint or designate one person, or more, to be in charge of the protection of personal data. The Regulations shall determine the responsibilities of such person, in accordance with the provisions of this Law and the Regulations.
  - 3. The controller shall cooperate with the Competent Authority to carry out its tasks related to overseeing the application of the provisions of this Law and the Regulations. It shall also take the necessary measures with regard to the matters pertaining to such implementation referred thereto by the Competent Authority.
  - 4. To carry out its duties related to supervising the application of the provisions of this Law and the Regulations, the Competent Authority may undertake the following:
    - a) Request the necessary documents or information from the controller to verify its compliance with the provisions of this Law and the Regulations.
    - b) Seek the assistance of other entities in carrying out its duties pertaining to supervising the application of the provisions of this Law and the Regulations.



- c) Determine the appropriate tools and mechanisms for monitoring the compliance of the controllers with the provisions of this Law and the Regulations, including creating a national register of controllers for such purpose.
  - d) Provide services relating to the protection of personal data through the national register referred to in subparagraph (c) of this paragraph or through any other means, as it deems appropriate. The Competent Authority may collect a fee for the services it provides relating to the protection of personal data.
5. The Competent Authority may assign other entities to carry out some of its duties which are related to the oversight of the application of this Law and the Regulations.”
- Repealing Article 32.
  - Amending Article 33 to read as follows:
    - “1. The Competent Authority shall set requirements for the practice of commercial, professional, or non-profit activities related to personal data protection in the Kingdom, in coordination with the relevant entities and without prejudice to the other requirements set by such entities according to their jurisdiction.
    - 2. The Competent Authority may license entities to issue accreditation certificates to controllers and processors. It shall set the rules governing the issuance of such certificates.
    - 3. The Competent Authority may license entities to examine or inspect personal data processing activities according to the nature of the activity the controller is engaged in, as provided for in the Regulations. The Competent Authority shall set the conditions, requirements, and rules for the issuance of such licenses.
    - 4. The Competent Authority shall determine the tools and mechanisms necessary to monitor the compliance of entities located outside the Kingdom with their obligations under this Law and the Regulations when processing the personal data of individuals residing in the Kingdom by any means, and shall also determine the procedures relating to the enforcement of the provisions of this Law and the Regulations outside the Kingdom.”
  - Amending Article 35 to read as follows:
    - “1. Without prejudice to any harsher penalty provided for in any other law, any person who discloses or publishes sensitive data in violation of this Law shall be subject to imprisonment for a period not exceeding two years and a fine not exceeding three million riyals, or to either penalty, if the intent is to harm the data subject or achieve personal interest.
    - 2. The Public Prosecution shall have jurisdiction to investigate and prosecute before the competent court the violation stipulated in paragraph (1) of this Article.
    - 3. The competent court shall hear cases relating to the application of this Article and shall impose the prescribed penalties.
    - 4. The competent court may double the fine stipulated in paragraph (1) of this Article if the violation is repeated, even if the imposed fine exceeds the maximum limit, provided that such fine does not exceed double such limit.”



- Amending Article 36(2) to read as follows:

“2. A committee, or more, shall be formed pursuant to a decision by the head of the Competent Authority. Such committee shall comprise at least three members, including a technical specialist and a legal advisor; one of whom shall be named chairman. Said committee shall review the violations and impose the penalty of warning or the fine stipulated in paragraph (1) of this Article according to the type, gravity, and impact of the violation. Committee decisions shall be approved by the head of the Competent Authority or his designee. The head of the Competent Authority shall, pursuant to a decision issued thereby, issue the committee’s work rules and determine the remuneration of its members.”
- Amending Article 37 to read as follows:

“1. Employees, appointed pursuant to a decision by the head of the Competent Authority, shall have the power of inspection and of detecting and recording the violations stipulated in this Law or the Regulations. The head of the Competent Authority shall issue the rules and procedures of their work in accordance with the relevant statutory provisions.

2. The employees referred to in paragraph (1) of this Article may seek the assistance of law enforcement agencies or other competent authorities in carrying out their detection and inspection duties related to the violations stipulated in this Law or the Regulations.

3. The Competent Authority may seize the means or tools used in committing the violation until a decision is issued thereon.”
- Amending Article 42 to read as follows:

“The head of the Competent Authority shall issue the Regulations within a period not exceeding seven hundred and twenty days from the date of issuance of this Law. He shall, prior to issuance of said Regulations, coordinate with the Ministry of Communications and Information Technology, the Ministry of Foreign Affairs, the Communications, Space, and Technology Commission, the Digital Government Authority, the National Cybersecurity Authority, the Saudi Health Council, and the Saudi Central Bank, each within their respective jurisdiction.”
- Amending Article 43 to read as follows:

"This Law shall enter into force 720 days following the date of its publication in the Official Gazette".